

NexCort iQ

Mutual Non-Disclosure Agreement

For use in pre-sales, demos, technical evaluations, and partnership discussions

Apps on Demand LLC · Columbus, Georgia

jeff@NexCortiQ.us · www.appsondemand.net · www.nexcortiq.us

This Mutual Non-Disclosure Agreement ("**Agreement**") is entered into as of the date last signed below ("**Effective Date**") by and between:

Apps on Demand LLC, a Wyoming Limited Liability Company d/b/a **NexCort iQ**, with its principal office located in, Columbus, Georgia 31909 ("**NexCort iQ**"); and

The organization identified in the signature block below ("**Counterparty**"), which may be a private company, government agency, municipality, special district, or public safety entity ("**Government Entity**" when applicable).

NexCort iQ and Counterparty are each a "Party" and together the "Parties."

The Parties wish to explore a potential business relationship involving NexCort iQ's public safety intelligence platform, including but not limited to product demonstrations, technical evaluations, pilot programs, integration discussions, pricing negotiations, and related activities (the "Purpose"). In connection with the Purpose, each Party may disclose confidential and proprietary information to the other.

In consideration of the mutual covenants set forth herein, the Parties agree as follows:

1. Definition of Confidential Information

"Confidential Information" means any non-public information disclosed by one Party (the "Disclosing Party") to the other Party (the "Receiving Party"), whether disclosed orally, in writing, visually, electronically, or by any other means, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.

Confidential Information includes, without limitation:

- a. NexCort iQ platform architecture, source code, algorithms, AI models, feature roadmaps, unpublished product capabilities, pricing structures, and technical specifications
- b. Business plans, financial information, customer lists, sales data, contract terms, and internal operational information

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- c. Agency or government entity operational data, call volume statistics, incident data, CAD configurations, dispatch protocols, staffing levels, and security system details
- d. Communications, emails, presentations, demonstrations, and oral discussions between the Parties marked or identified as confidential at the time of disclosure or within fifteen (15) days thereafter
- e. Any information that, by its nature, a reasonable person in the relevant industry would understand to be confidential

Confidential Information does NOT include information that:

- a. Is or becomes publicly available through no fault of the Receiving Party
- b. Was rightfully known to the Receiving Party before disclosure by the Disclosing Party, as evidenced by written records predating the disclosure
- c. Is rightfully received by the Receiving Party from a third party without restriction on disclosure
- d. Is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information
- e. Is required to be disclosed by applicable law, court order, or government regulation, subject to the provisions of Section 5 below

2. Obligations of the Receiving Party

The Receiving Party agrees to:

- a. Hold all Confidential Information in strict confidence using at least the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care
- b. Not disclose Confidential Information to any third party without the prior written consent of the Disclosing Party
- c. Use Confidential Information solely for the Purpose described in this Agreement
- d. Limit access to Confidential Information to those of its employees, officers, directors, contractors, advisors, and agents ("Representatives") who have a need to know such information for the Purpose and who are bound by confidentiality obligations at least as protective as those in this Agreement
- e. Promptly notify the Disclosing Party in writing upon discovery of any unauthorized use or disclosure of Confidential Information and cooperate with the Disclosing Party to regain possession and prevent further unauthorized use or disclosure
- f. Not reverse engineer, decompile, disassemble, or otherwise attempt to derive the composition or underlying structure of any Confidential Information, including any software, technology, or product demonstrated or disclosed

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3. Government Entity Provisions

Applicable when Counterparty is a government agency, municipality, county, special district, or public authority.

3.1 Open Records and Freedom of Information

The Parties acknowledge that Counterparty may be subject to open-records, freedom of information, sunshine, or public-records laws ("Open Records Laws") that may require disclosure of documents received from NexCort iQ. Counterparty agrees to:

- a. Designate all NexCort iQ Confidential Information received under this Agreement as potentially exempt from disclosure under applicable Open Records Laws to the extent permitted by law
- b. Provide NexCort iQ with written notice as promptly as practicable — and in any event before disclosure — upon receiving a public-records request or legal demand that would require disclosure of any NexCort iQ Confidential Information
- c. Cooperate with NexCort iQ, at NexCort iQ's expense, in asserting any applicable exemptions or seeking a protective order with respect to such disclosure
- d. Use reasonable efforts to redact or withhold NexCort iQ Confidential Information from any public response to the extent permitted by applicable law

Nothing in this Agreement requires Counterparty to violate any applicable law, regulation, or court order. If Counterparty is required by law to disclose NexCort iQ Confidential Information despite compliance with this Section, such disclosure shall not constitute a breach of this Agreement, provided Counterparty has complied with the notice and cooperation obligations above.

3.2 Procurement Integrity

This Agreement does not restrict Counterparty from disclosing information as required under any applicable procurement statute, competitive bidding requirement, or public contracting law. The Parties further agree that this Agreement does not create any obligation, preference, or commitment regarding a future contract, and does not restrict Counterparty's ability to solicit proposals from, negotiate with, or award contracts to other vendors.

3.3 Liability Cap for Government Entities

The Parties acknowledge that the liability of government entities is limited by applicable law. Nothing in this Agreement shall be construed to waive any sovereign immunity, governmental immunity, or limitation of liability applicable to Counterparty under state or federal law. NexCort iQ acknowledges that any remedy for

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breach by a Government Entity may be limited to injunctive or declaratory relief where monetary damages are unavailable or capped by law.

3.4 No Disclosure of Sensitive Security or Operational Information

To the extent Counterparty discloses sensitive security information (including but not limited to physical security system details, access control configurations, personnel rosters, radio frequencies, or vulnerability assessments), NexCort iQ agrees to treat such information with heightened protection and limit access to personnel with a direct need to know for the Purpose. NexCort iQ will not disclose such operational security information to any third party under any circumstances.

4. Permitted Disclosures

Notwithstanding Section 2, the Receiving Party may disclose Confidential Information:

- a. To its legal counsel, auditors, or financial advisors who are subject to professional confidentiality obligations
- b. As required by applicable law, regulation, stock exchange rule, or court order — subject to the notice provisions of Section 5
- c. With the prior written consent of the Disclosing Party

5. Required Legal Disclosure

If the Receiving Party is required by law, regulation, court order, or governmental authority to disclose any Confidential Information, the Receiving Party shall, to the extent legally permissible:

- a. Provide the Disclosing Party with prompt written notice before disclosure, sufficient to allow the Disclosing Party to seek a protective order or other appropriate relief
- b. Cooperate reasonably with the Disclosing Party in seeking such relief, at the Disclosing Party's expense
- c. Disclose only that portion of the Confidential Information that is legally required to be disclosed
- d. Use reasonable efforts to obtain confidential treatment for any Confidential Information so disclosed

6. Term

This Agreement is effective as of the Effective Date and continues for a period of three (3) years, unless earlier terminated by either Party upon thirty (30) days' written notice. The obligations of confidentiality with respect to Confidential Information disclosed during the term of this Agreement shall survive termination or expiration of this Agreement for a period of three (3) additional years, except that obligations

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with respect to trade secrets shall continue for as long as such information constitutes a trade secret under applicable law.

7. Return or Destruction of Information

Upon termination of this Agreement or upon written request by the Disclosing Party, the Receiving Party shall:

- a. Promptly return to the Disclosing Party all tangible materials containing Confidential Information, or
- b. At the Disclosing Party's election, certify in writing that all such materials have been destroyed

The Receiving Party may retain copies of Confidential Information as required by applicable law or bona fide document-retention policies, provided such retained copies remain subject to the confidentiality obligations of this Agreement. Electronic backup copies created in the ordinary course of business that cannot reasonably be deleted shall be deemed destroyed when overwritten in the normal backup cycle.

8. No License or Rights Granted

Nothing in this Agreement grants either Party any license, right, title, or interest in or to any Confidential Information of the other Party, or any patent, copyright, trademark, trade secret, or other intellectual property right. Each Party retains all ownership of its Confidential Information.

9. No Warranty

Confidential Information is provided "as is." The Disclosing Party makes no representation or warranty as to the accuracy, completeness, or fitness for any purpose of any Confidential Information disclosed under this Agreement. The Receiving Party assumes all risk in its use of Confidential Information.

10. Injunctive Relief

The Parties acknowledge that a breach of this Agreement may cause irreparable harm for which monetary damages would be an inadequate remedy. Accordingly, either Party shall be entitled to seek injunctive or other equitable relief in a court of competent jurisdiction to enforce this Agreement, in addition to any other remedies available at law or in equity, without the requirement of posting bond or other security. This provision does not limit the effect of Section 3.3 with respect to Government Entity liability caps.

11. Governing Law and Venue

This Agreement is governed by the laws of the State of Georgia, without regard to its conflict-of-law principles. Any dispute arising under or related to this Agreement shall be resolved exclusively in the state or

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federal courts located in Muscogee County, Georgia, and the Parties irrevocably consent to personal jurisdiction and venue in such courts.

Notwithstanding the foregoing, where Counterparty is a government entity required by law to litigate disputes in a specific venue or jurisdiction, NexCort iQ agrees to negotiate in good faith regarding an appropriate venue modification.

12. Miscellaneous

12.1. Entire Agreement. This Agreement constitutes the entire agreement of the Parties with respect to confidentiality and supersedes all prior agreements, understandings, and negotiations regarding the same subject matter. Any subsequent Master Services Agreement, Pilot Agreement, or contract between the Parties shall supersede this Agreement as to matters it addresses.

12.2. Amendment. No amendment to this Agreement is valid unless made in writing and signed by authorized representatives of both Parties.

12.3. Waiver. Failure to enforce any provision of this Agreement shall not constitute a waiver of the right to enforce it in the future.

12.4. Severability. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.

12.5. Counterparts and Electronic Signatures. This Agreement may be executed in counterparts, each of which shall be deemed an original. Electronic signatures shall be as legally binding as original signatures.

12.6. No Third-Party Beneficiaries. This Agreement is for the sole benefit of the Parties and their permitted successors; it does not confer any rights on any third party.

12.7. Relationship of the Parties. Nothing in this Agreement creates a partnership, joint venture, TM agency, employment, or franchise relationship between the Parties.

12.8. Notices. Notices under this Agreement shall be in writing and delivered by email with confirmation, overnight courier, or certified mail to the addresses in the signature block below.

— Intelligence at the speed of response. —

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Signature Page

IN WITNESS WHEREOF, the Parties have executed this Mutual Non-Disclosure Agreement as of the date last signed below.

APPS ON DEMAND LLC

COUNTERPARTY

Signature

Signature

Print name

Print name

Title

Title

Date

Date

NexCort iQ address for notices:

Apps on Demand LLC

Columbus, Georgia 31909

jeff@NexCortiQ.us | www.appsondemand.net | www.NexCortiQ.us

Apps on Demand LLC · Confidential · NexCort iQ Mutual NDA v1.0

